

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SERVISIO SIMMON,

Plaintiff,

- against -

POLICE OFFICER GABRIEL PEREZPONE, POLICE
OFFICER MARK SOTO, POLICE OFFICER QUENTIN
FOX, POLICE OFFICER DYALN BURGER, POLICE OFFICER
KENNETH CHOW, POLICE OFFICER ANTOINE DUCRET,
POLICE OFFICER SHAUNDALE GORE, POLICE OFFICER
WANDA MERAN, POLICE OFFICER ZACHARY PALLADINO,
POLICE OFFICER SEAN RIORDAN, POLICE OFFICER ERICA
RIVERA, POLICE OFFICER LUC VAVAL, POLICE OFFICER
CHRISTINE VEGA,

Defendants.

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INDEX NO:
157840/2023**SECOND**
AMENDED
COMPLAINT

Plaintiff, SERVISIO SIMMON, by his attorneys LORD LAW GROUP PLLC, allege upon
knowledge as to themselves and their own actions, and upon information and belief as to all
other matters, as follows:

PRELIMINARY STATEMENT

1. Servisio Simmon, an emotionally disturbed person who was suffering from a
mental health crisis while incarcerated, was brutally assaulted by officers resulting in a
fractured wrist that required surgery.

2. Mr. Simmon brings this action for compensatory damages, punitive damages,
and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his
rights under the Constitution of the United States of America and the New York State
Constitution.

JURISDICTION AND VENUE

3. Jurisdiction lies in the Supreme Court of New York, County of New York, as all Defendants resided or were employed in the State of New York, and the amount in controversy exceeds the jurisdictional amounts of all lower courts.

PARTIES

4. Plaintiff Servisio Simmon was at the time of the incident a resident of New York County - Manhattan, New York.

5. Defendant Police Officer GABRIEL PEREZPONE, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

6. Defendant Police Officer MARK SOTO, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

7. Defendant Police Officer QUENTIN FOX, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

8. Defendant Police Officer DYLAN BULGER, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

9. Defendant Police Officer KENNETH CHOW, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

10. Defendant Police Officer ANTOINE DUCRET, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

11. Defendant Police Officer SHAUNDALE GORE, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

12. Defendant Police Officer WANDA MERAN, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the

scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

13. Defendant Police Officer ZACHARY PALLADINO, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

14. Defendant Police Officer SEAN RIORDAN, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

15. Defendant Police Officer ERICA RIVERA, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

16. Defendant Police Officer LUC VALAL, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

17. Defendant Police Officer CHRISTINE VEGA, was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the New York Police Department, acting under color of law and in their individual capacities within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. They are sued in their individual capacity.

10. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

Servisio Simmon, After Being Placed Under Arrest, Informs The Officers At The Precinct He Is Feeling Suicidal

13. On or about August 07, 2020, Mr. Simmon was placed under arrest on suspicion of robbery. Though he did not commit the crime, that arrest is not the subject

matter of the instant lawsuit.

14. On August 08, 2020, Mr. Simmon woke up in the cell and informed the officers that he was suicidal. Officers responded that “they were working on it.”

15. Later, a homicide detective came to interrogate Mr. Simmon. The detective told Mr. Simmon that he was facing life in prison.

Servicio Simmon Suffers A Mental Health Crisis After The Interrogation

16. Soon after midnight, Mr. Simmon suffered from a mental health crisis. He took off his pants and began to use the pants in the cell to hang himself.

17. As he was attempting to hang the pants, the officers ran into the cell and yelled at him to stop.

18. Instead of attempting to assist Mr. Simmon, the officers went inside his cell, threw him against the wall, and put him in the headlock.

19. One officer, who put Mr. Simmon in a headlock, applied pressure to Mr. Simmon neck in such a way that he could not breathe.

20. Mr. Simmon did not resist or attempt to fight back.

21. The officers then proceeded to forcefully inject him with a needle.

22. As Mr. Simmon was falling unconscious, he felt his wrist snap.

Mr. Simmon Wakes Up In The Hospital With A Fractured Wrist

23. Plaintiff woke up inside Bellevue Hospital chained to a bed. There were also two other officers who were present and monitoring him.

24. Plaintiff heard a medical professional that Mr. Simmon had fractured his wrist.

25. Plaintiff also heard the officer tell the medical professional to say that it was

an “old injury.”

26. Mr. Simmon was given a splint and pain medication before being transported to Manhattan Criminal Court for arraignment.

27. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

28. As a result of the defendants’ conduct, plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, physical injury, apprehension, , emotional and psychological trauma, loss of income, and violation of rights under the New York Constitutions, and applicable statutory and case law.

CLAIMS FOR RELIEF**Claim I: Excessive Force Under 42 U.S.C. § 1983**

29. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

30. Defendant John Does, when rushing into Plaintiff's cell, used an unreasonable amount of force.

31. This use of force caused Plaintiff to suffer, *inter alia*, a broken wrist that required hospitalization and surgery.

32. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claim II: Failure To Intervene Under 42 U.S.C. § 1983

36. Plaintiff repeats and re-alleges each and every allegation as if fully set forth herein.

37. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct, had a duty to intervene and prevent such conduct and failed to intervene.

38. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

39. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

DAMAGES

27. This action seeks damages on behalf of Plaintiff for emotional pain and suffering, along with the physical injuries, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

28. Plaintiff has suffered, and continues to suffer, severe and ongoing damages, specifically including, physical pain and injuries, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

29. The acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

[REMAINDER INTENTIONALLY LEFT BLANK]

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand the following relief against Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court deem appropriate and equitable.

DATED: this 18th Day of November 2023

New York, New York

Yours, etc.

Lord Law Group PLLC



Masai I. Lord
Attorneys for Plaintiff
SERVISIO SIMMON
14 Wall St., Ste 1603
New York, NY 10005

Counsel for Plaintiff SERVISIO SIMMON

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for plaintiff *SERVISIO SIMMON*. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
October 9, 2023



Masai I. Lord
Counsel for Plaintiff